

Telecommunications Reports presents TR's State NewsWire
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FUTURE OF REGULATION

WASHINGTON

Bill could erase price list requirement for competitive carriers

The Utilities and Transportation Commission has forwarded a bill (HB 5380) to the Legislature that would give the commission the ability to waive the requirement that competitive carriers file a price list with the WUTC. The commission staff explained to TR that under current law, competitive carriers must file either a tariff or a price list. This bill would give the commission the discretion to determine whether a price list should be filed.

The staff said that if the bill is passed, the commission would follow up with a rulemaking proceeding, which would allow the industry to weigh in on whether to modify or eliminate the price list requirement.

The staff said HB 5380 stems from issues relating to competitive carriers and their pricing. The staff explained that certain carriers have quoted customers one price but charged them a different one. When questioned by the customers, the carriers said the prices being charged were included in a price list on file with the WUTC.

HB 5380 also would ensure that competitive carriers and competitive services are treated equally. Under current law they are treated separately, although both have minimal regulation. For competitive companies, the commission may waive any regulation, but that's not the case for competitive carriers, the staff said. This bill would strike the statutory language governing both competitive carriers and services and would write new language treating the two the same.

HB 5380, which was sponsored by Sen. Betti Sheldon (D., District 23), awaits consideration by the House Economic Development and Transportation Committee.

STATE & LOCAL GOVERNMENT

MICHIGAN

Parties discuss municipal rights-of-way fee structures

The Public Service Commission is hosting meetings with company and municipal officials to discuss model regulations and fee structures for franchise agreements with city governments. The group held its first meeting Jan. 18, during which it accomplished several organizational tasks. The second meeting tentatively is scheduled for sometime during the second week of January, a Michigan Telecommunications Association representative told TR.

In October 2000 the PSC fined the city of Birmingham \$10,000 for its practices regulating use of the municipal rights-of-way. The PSC fined the city of Rochester \$20,000 for similar violations in December 2000. (12/21/00 a.m.)

INTERNET

OREGON

Committee OKs digital signature bill

The House Advancing E-Government Committee has approved HB 2040 to require the Department of Administrative Services to adopt rules for digital signature use by state agencies. The Joint Legislative Committee on Information Management and Technology requested HB 2040 on behalf of the Oregon Internet Commission.

HB 2040 awaits consideration on the House floor.

TAXATION

ARKANSAS

Bill would outline implementation of federal mobile telecom law

Sen. Jim Hill (D., District 5) has introduced SB 309 to allow the director of the Department of Finance and Administration to decide how to implement the federal Mobile Telecommunications Sourcing Act, which was enacted last year. The Act allows only local tax authorities in a customer's "place of primary use" to tax mobile services provided by the customer's home service provider.

SB 309 would help implement the Act by requiring the director of the Department of Finance and Administration to determine how to assign the place of primary use. The director either could provide vendors with a database linking taxing jurisdictions to addresses or ask vendors to use an extended zip code at least nine digits long.

SB 309 also would amend an existing state law pertaining to the levy of gross receipts tax on telecom services. The bill would extend the list of taxable long distance services by adding long distance messages that originate and terminate outside Arkansas made by wireless phone services that are billed to a place of primary use in the state.

SB 309 has been referred to the Senate Committee on Revenue and Tax. Its text is available at

<http://www.arkleg.state.ar.us/ftpoot/bills/2001/htm/SB309.pdf>.

CUSTOMER-AFFECTING WASHINGTON

Lawmaker would give citizens tool against unwanted telemarketers

Rep. Cheryl Pflug (R., District 5) has introduced a bill to create a no-call list for citizens that don't want to receive telemarketing telephone calls. The state Utilities and Transportation Commission would set up the list. Registration would be free.

HB 1402 awaits consideration by the House Technology, Telecommunications, and Energy Committee.

FUTURE OF REGULATION MISSOURI

Bill would create e-commerce advisory committee

Sen. Sarah Steelman (R., District 16) has introduced SB 293 to establish a committee that would advise state agencies on electronic commerce issues. The Advisory Committee for Electronic Commerce would operate within the Department of Economic Development (DED). The director of the DED would chair the new committee and appoint 10 other members. Each member would serve a two-year term.

SB 293 has been referred to the Senate Commerce and Environment Committee. Its full text is available at <http://www.senate.state.mo.us/01info/billtext/intro/SB293.htm>.

Rep. Bill Luetkenhaus (D., District 12) has introduced a similar bill, HB 447, in the House. (1/22/01 2 p.m.) Its text is available at <http://www.house.state.mo.us/bills01/biltxt01/intro01/HB0447I.htm>.

INTERCOMPANY COMPENSATION -- EAS VIRGINIA

Verizon South to implement second phase of expanded local calling

The State Corporation Commission has approved the second phase of a plan to expand local calling in several Verizon South, Inc. (formerly GTE South, Inc.) exchanges in the Norfolk area. The exchanges include Boykins, Chuckatuck, Courtland, Crittenden, Dendron, Franklin, Holland, Ivor, Smithfield, Surry, Wakefield, and Windsor.

In August 2000 the SCC approved the first phase of the expanded calling plan for exchanges in several local access and transport areas served by Verizon South and Verizon Virginia, Inc. (formerly Bell Atlantic Virginia, Inc.). The companies' expanded calling plan implements a condition included in the SCC's order approving the Bell Atlantic Corp.-GTE Corp. merger, which created Verizon. (11/30/99 a.m.)

The commission received nearly 50 comments from customers in the affected exchanges, most of them supporting the plan. Because implementation will result in "substantial rate increases" for many customers, the commission ordered Verizon South to issue a notice at explaining "applicable local exchange service options" customers can use to mitigate higher basic service rates. (PUC000204, Joint application of Verizon Virginia Inc., f/k/a Bell Atlantic-Virginia, Inc., and

Verizon South Inc., f/k/a GTE South Inc. to expand local calling between various exchanges)

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